

In California, "a prevailing party is entitled to attorney's fees only when specifically authorized by statute, contract or law." (*Department of Forestry & Fire Protection v. Le Brock* (2002) 96 Cal.App.4th 1137, 1140.) Here, Cross-Complainant has not pled that he is entitled to attorney's fees via statute, contract, or law. Cross-Defendants' motion to strike is granted with leave to amend as to attorney's fees.

Restitution

Under the law of restitution, an individual may be required to make restitution if he is unjustly enriched at the expense of another. (*Ghirardo v. Antonioli* (1996) 14 Cal.4th 39, 51.) A person is enriched if he receives a benefit at another's expense. (*Id.*) The term "benefit" denotes any form of advantage; thus, a benefit is conferred not only when one adds to the property of another, but also when one saves the other from expense or loss. (*Id.*)

FACC alleges that Cross-Defendants received benefits from Cross-Complainant's payments, business expenditures, and efforts while refusing to contribute or repay as promised. Restitution may be available as an alternative remedy where a defendant has been unjustly enriched. The FACC's restitution request is tied to the same factual allegations underlying the contract, fraud, and interference claims.

Allegations that Contradict Attached Exhibits

Cross-Defendants contend that the FACC repeatedly alleges contractual duties and obligations that are contradicted by the written agreements attached as exhibits and incorporated into the pleading, including assertions that the Operating Agreement imposed obligations requiring Cross-Defendant Sabrina Han to personally: (1) provide sufficient capital and managerial contributions; (2) repay debts to third-party creditors; (3) contribute toward startup expenses; and (4) ensure continued operation of Jug Shop Liquors or prevent eviction.

These allegations are rooted in Section III of the Operating Agreement and the breach of oral agreement. (FACC ¶¶ 42-50; FACC, Ex. A, section III.)

Conclusion

In consideration of the above, **Motion to Strike is granted with leave to amend for the attorney's fees requests and denied as to all other requests. Cross Complainant must file amended pleadings within 15 days of service of notice of entry of this order.**

8. 9:00 AM CASE NUMBER: C25-02606
CASE NAME: JAMEIZ TERRELL VS. BISA FRENCH
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: FRENCH, BISA
TENTATIVE RULING:

Before the Court is Defendants Bisa French, Enrik Melgoza, Miguel Castillo and Joseph England's (collectively "Individual Defendants") demurrer. The demurrer relates to Plaintiffs Jameiz Terrell, Michelle Sequeira, and Alayna Woody's (collectively "Plaintiffs") Complaint for (1) Sex Discrimination [all Plaintiffs against the City and RPD]; (2) Race Discrimination [Ms. Terrell against the City and RPD]; (3) Sexual Orientation Discrimination [Ms. Terrell against the City and RPD]; (4) Harassment [all Plaintiffs against all Defendants]; (5) Retaliation [all Plaintiffs against the City and RPD]; (6) Failure to Prevent Discrimination and Harassment [all Plaintiffs against the City and RPD]; (7) Violation of Labor Code sections 233, 234, and 246.5 [Ms. Terrell against the City and RPD]; and (8) Intentional Infliction of Emotional Distress [all Plaintiffs against Bisa French, Enrik Melgoza, Miguel Castillo, and Joseph England].

Individual Defendants demur to Plaintiffs' causes of action for harassment on the grounds that Plaintiffs fail to state a claim for harassment (§ 430.10(e)) and their allegations render their claim uncertain and unintelligible (§ 430.10(f)); they demur to Plaintiffs' claim for intentional infliction of emotional distress on the grounds that (1) Plaintiffs failed to allege compliance with the Government Tort Claims Act, (2) Individual Defendants are entitled to statutory immunity, (3) Plaintiffs' claim fails on the merits, (4) Plaintiffs fail to state a claim for IIED (§ 430.10(e)), and (5) Plaintiffs' allegations render their claim uncertain and unintelligible (§ 430.10(f)).

Plaintiffs oppose Individual Defendants' demurrer on two grounds. As to the fourth cause of action for harassment, Plaintiffs contend that the alleged conduct, including GPS tracking, punitive beat transfers, negative performance evaluations, unlawful detention, and concealment of evidence, constitutes a severe and pervasive pattern of sex-based harassment falling outside legitimate management

authority. As to the eighth cause of action for intentional infliction of emotional distress, Plaintiffs argue that the Government Claims Act does not bar their claim because lost wage damages are exempt from presentment under Government Code section 905(c), that discretionary immunity is premature at the pleading stage, and that the alleged conduct satisfies the extreme and outrageous standard.

For the following reasons, the Individual Defendants' demurrer to Plaintiffs' fourth cause of action for harassment and eighth cause of action for intentional infliction of emotional distress is **SUSTAINED WITH LEAVE TO AMEND** as to all Plaintiffs.

Plaintiff has 15 days from service of notice of entry of this order to file any amended pleading.

I. Factual Allegations and Background

This suit arises out of an employment dispute between current and former police officers with the Richmond Police Department ("RPD"). (Complaint ("Compl.") at 2:2-4.)

A. Jameiz Terrell

i. Background and Performance History

Ms. Terrell, a Black, lesbian woman, graduated from the Napa Valley Police Academy in 2015. (Compl. at 4:17-18; 6:26-28.) On July 11, 2015, she was hired by RPD, and in December of that year she completed her training and became a sworn peace officer. (*Ibid.*) In April 2019, Ms. Terrell became a Gang Unit Detective and SWAT Team Operator. (*Id.* at 7:4-6.) She became a member of the Tactical Response Team on January 6, 2020. (*Ibid.*) From 2019 to 2023 she served as a Task Force Officer with the federal bureau of Alcohol, Tobacco, and Firearms. (*Id.* at 7:7-8.) Ms. Terrell was employed continuously by RPD until her alleged constructive termination on October 26, 2023. (*Id.* at 4:16-17; 6:28-7:1.)

While employed by RPD, Ms. Terrell completed approximately 75 certified training courses; in 2017 she was awarded RPD's Community Policing Officer of the Year; and in 2018 she received a commendation for dedication and reduction

of violence. (Compl. at 7:2-4.)

Ms. Terrell alleges that she was targeted and “experienced severe discrimination, harassment, and retaliation” at the hands of supervisor Nathan Lonso. (Compl. at 7:14-15.) She alleges that he “singl[ed] her out for unwarranted scrutiny and attempt[ed] to sabotage her career while providing preferential treatment to her nonprotected colleagues.” (*Id.* at 7:15-17.) Her Complaint does not elaborate on who the nonprotected colleagues were or what preferential treatment they received.

In April of 2020, Ms. Terrell alleges she and another officer filed a complaint against Mr. Lonso; the complaint prompted an Internal Affairs investigation, which led to Mr. Lonso’s termination. (Compl. at 7:17-19.) Ms. Terrell alleges that Mr. Lonso was ultimately reinstated by RPD. (*Ibid.*)

ii. Road Rage Incident

On October 17, 2020, Ms. Terrell was allegedly involved in an off-duty, road rage incident in Fairfield, California, with gang-related subjects wherein she alleges “she brandished her firearm in an attempt to defuse the situation.” (Compl. at 7:23-24.) The Fairfield Police Department investigated the incident and concluded no crime had occurred. (*Id.* at 7: 25-26.) Ms. Terrell alleges she followed department protocol by immediately reporting the incident to RPD. (*Id.* at 7:26.) Nearly a year later, on October 14, 2021, RPD proposed disciplining Ms. Terrell for the incident by placing her on a 10-hour suspension without pay and removing her from her Special Response Team assignment. (*Id.* at 7:27-28.)

A subsequent *Skelly* Hearing issued a finding on March 3, 2022, that, because Ms. Terrell had received “numerous awards and commendations for outstanding police work” even as recently as January of 2022, the proposed disciplinary action of removing Ms. Terrell from her Special Response Team assignment was “much too severe and [was] NOT SUSTAINED.” (Compl. at 7:28-8:9.) The *Skelly* officer also noted that while allegations of inequitable treatment had been raised, issues related to discrimination were outside the scope of the *Skelly* officer’s assignment, and the officer instead “urg[ed] the “Human Resources Department

[to] conduct a thorough information.” (*Id.* at 8:3-6.) Ms. Terrell alleges “on information and belief” that no human resources inquiry was undertaken into the discrimination issue flagged by the *Skelly* officer. (*Id.* at 8:6-7.)

RPD opted to overrule the *Skelly* officer’s findings and remove Ms. Terrell from her position on the Special Response Team anyway. (Compl. at 8:9.) On August 22, 2023, however, the department reversed course and agreed to adopt the *Skelly* officer’s findings; accordingly, Ms. Terrell was placed back on her Special Response Team assignment. (*Id.* at 8:8-12.)

iii. Flying Armed

Ms. Terrell alleges that during an RPD wiretap investigation on which Ms. Terrell was working, communications were intercepted on August 19, 2021, that indicated that a suspect with whom Ms. Terrell had recent contact, would coincidentally be on the same aircraft as Ms. Terrell for an upcoming flight. (Compl. 8:15-18.) With the apparent blessing of ATF, Ms. Terrell opted to fly armed for her safety due to her recent contact with the suspect. (*Id.* at 8:18-20.) On August 9, 2022, RPD issued a summary reprimand regarding the incident, stemming from an anonymous complaint received by the department. (*Id.* at 8:20-22.) Ms. Terrell authored a rebuttal to the reprimand wherein she stated she believed the discipline was retaliation for her complaint about Mr. Lonso; Ms. Terrell alleges that RPD did not act on her report of the retaliation. (*Id.* at 8:22-23.)

iv. Alleged Pattern of Targeting by Castillo and Melgoza

Enrik Melgoza and Miguel Castillo are alleged to be close friends of Mr. Lonso’s. (Compl. at 8:13-14.) At a December 14, 2022 arbitration hearing regarding Mr. Lonso’s termination, Mr. Castillo testified as a character witness for Mr. Lonso. (*Id.* at 9:18-19.) Ms. Terrell alleges Mr. Castillo and Mr. Melgoza repeatedly targeted her during the course of her employment with RPD. (*Id.* at 8:13-15.)

v. Melgoza

On January 19, 2022, Ms. Terrell alleges Mr. Melgoza told her she would be switched to Beat 7. (Compl. at 8:24-28.) Ms. Terrell alleges that Mr. Melgoza’s

reasoning for the switch – that he believed another officer, who sued the department for discrimination, harassment, and retaliation, would not provide Ms. Terrell proper cover during proactivity stops – was pretextual. (*Id.* at 8:24-28.) She alleges that “Beat 7 was known as the busiest beat in the city, where officers were placed when they were being punished.” (*Id.* at 8:27-28.) She also alleges that during the same period, “nonprotected officers with less seniority than Terrell received preferential treatment in the form of easier beats.” (*Id.* at 8:28-9:2.)

On January 2, 2023, Mr. Melgoza allegedly completed a Transfer Request endorsement declining to recommend Ms. Terrell for the position of Field Training Officer (“FTO”), citing excessive sick leave usage in 2022 and claiming that Ms. Terrell struggled with basic patrol functions and decision-making. (Compl. at 9:20-27.) Ms. Terrell alleges such performance issues had never previously been raised with her. (*Id.* at 9:25-26.) On January 9, 2023, Mr. Melgoza confirmed to Ms. Terrell that the sick leave usage was his reason for the denial. (*Id.* at 9:26-27.) It was only after the Richmond Police Officers Association (“RPOA”) complained on her behalf that Ms. Terrell was granted an interview for the FTO position. (*Id.* at 9:28-10:2.) A lengthy evaluation was subsequently added to her personnel file, which RPD Police Chief Bisa French later ordered removed. (*Id.* at 10:2-3.) Ms. Terrell alleges that RPD was ultimately required to modify its FTO endorsement process as a result of Mr. Melgoza’s conduct, though the Complaint does not elaborate on the nature of that modification. (*Id.* at 9:27-28.)

On March 13, 2023, Mr. Melgoza allegedly presented Ms. Terrell with her 2022 performance evaluation and directed her to sign and return it the same day. (Compl. at 10:4-5.) The evaluation criticized Ms. Terrell for excessive sick leave usage, comparing her usage to the purported team average and including approximately 40 hours of workers’ compensation-related medical leave in that figure. (*Id.* at 10:5-9.) The evaluation also referenced the 2021 flying-armed incident and, based on a purported random audit of Ms. Terrell’s body camera footage conducted by Castillo, criticized her for discussing her firearm with a civilian. (*Id.* at 10:10-15.) Ms. Terrell received a verbal warning based on the body

camera finding. (*Id.* at 10:15.) Chief French determined that an Internal Affairs investigation was unwarranted but allegedly advised Ms. Terrell that “they were ‘gunning’ for her.” (*Id.* at 10:16-17.) The Complaint does not clarify who specifically “they” is, however it does allege that nonprotected officers who used sick leave were not subject to comparable scrutiny. (*Id.* at 10:9-10, 16-17.)

On March 21, 2023, a meeting was allegedly held with Mr. Melgoza, Ms. Terrell, the RPOA President, and another officer regarding Ms. Terrell’s performance evaluation. (Compl. at 10:18-19.) Mr. Melgoza agreed to revise certain sections, including the sick leave discussion, but failed to do so. (*Id.* at 10:20-22.)

On June 5, 2023, Mr. Melgoza allegedly issued Ms. Terrell a negative comment card for responding to work emails while on sick leave. (Compl. at 10: 23-24.)

On September 21, 2023, Mr. Melgoza, as SWAT team leader, allegedly placed Ms. Terrell on rear security without explanation rather than in her usual position in the stacking order, replacing her with a nonprotected officer who had not attended SWAT school. (Compl. at 10: 25-27.)

vi. Castillo

On March 16, 2022, Mr. Castillo and Ms. Terrell allegedly responded to a child custody dispute. (Compl. at 9:3.) A lieutenant allegedly ordered the child to be left with the mother however Mr. Castillo went to the mother’s home and took the child, which prompted the mother to complain to the Richmond City Council. (*Id.* at 9:4-5.) An Internal Affairs investigation into Castillo’s conduct followed. (*Id.* at 9:6.) The investigating officer, then-sergeant Joseph England, allegedly concluded that Mr. Castillo was targeting Ms. Terrell. (*Id.* at 9:6-7.) The Complaint does not specify what conduct constituted the targeting, how the incident adversely affected Ms. Terrell, or what connection it bore to her protected status or activity.

On August 15, 2022, Mr. Castillo allegedly directed Ms. Terrell to respond as primary officer to a service call outside her beat while she was already on another call. (Compl. at 9:8-9.) Several days later, on August 18, 2022, Mr. Castillo allegedly telephoned Ms. Terrell demanding to know what report she was writing and its case number, then hung up on her without further explanation. (*Id.* at

9:10-11.)

vii. Detective Selection

On November 9, 2022, the Office of the Chief of Police released new assignment selections and Ms. Terrell allegedly learned she had not been selected as a detective. (Compl. at 9:12-13.) When she sought to look at the selection paperwork to find out how she scored she discovered she was listed as “appointed” under the Domestic and Sexual Violence Unit. (*Id.* at 9:13-15.) Ms. Terrell allegedly followed up with Chief French’s secretary to inquire about the inconsistency and “the secretary replied that she thought Terrell had been selected and was uncertain what changed.” (*Id.* at 9:15-17.) The Complaint does not identify who made the final section decision or on what basis.

viii. Request for Reassignment

Ms. Terrell allegedly made four requests (February 1, 2022, November 8, 2022, March 23, 2023, and June 27, 2023) to Captain Matt Stonebreaker to be transferred from Team 2 to Team 1 to avoid supervision by Mr. Melgoza and Mr. Castillo. (Compl. at 11:2-6.) In her final request, Ms. Terrell noted that adverse incidents had continued since her prior requests; RPD denied all four requests. (*Id.* at 11:6-9.)

ix. Resignation

On October 23, 2023, Ms. Terrell submitted her resignation, effective October 26, 2023. (Compl. at 11:12.) During her exit interview, Chief French allegedly acknowledged that Mr. Castillo and Mr. Melgoza had been targeting Ms. Terrell and stated that Chief French had been unable to protect Ms. Terrell. (*Id.* at 11:13-15.) On her final day, Ms. Terrell allegedly reported to SWAT team training and was directed by Melgoza to report to desk duty instead. (*Id.* at 11:16-18.)

B. Michelle Sequeira

Background and Performance History

Ms. Sequeira, a woman, was hired by RPD as a police officer trainee on May 13, 2019. (Compl. at 11:22-23.) She became a sworn police officer and promoted to the rank of Police Officer on November 18, 2019. (*Id.* at 11:23-24.) Ms. Sequeira

was employed continuously by RPD until her termination on July 3, 2025. (*Id.* at 11:26-27.)

Ms. Sequeira received a performance appraisal for the period of November 18, 2019, through November 18, 2020, with an overall rating of “Meets Expectations.” (Compl. at 12:6-8.) The appraisal noted that her report writing had progressively improved and her reports had become complete and concise. (*Id.* at 12:8-9.) She received a second appraisal for the period of November 18, 2020, through November 18, 2021, again rated “Meets Expectations.” (*Id.* at 12:10-12.) That appraisal noted that she had continuously improved her report writing and made an effort to seek assistance from more tenured officers. (*Id.* at 12:12-14.)

In March of 2024, Ms. Sequeira received a Bureau Commendation for her role in the safe surrender of a homicide suspect and recovery of evidence. (Compl. at 12:1-3.) She also received commendations from the chiefs of police of Pittsburg and San Francisco in September and October of 2023. (*Id.* at 12:3-5.)

Motor Vehicle Accident

On June 17, 2022, while on patrol Ms. Sequeira was allegedly involved in a motor vehicle collision at the intersection of 34th Street and McBryde Avenue in Richmond. (Compl. at 12:15-16.) Ms. Sequeira, traveling on 34th Street, failed to yield to a vehicle traveling on McBryde Avenue. (*Id.* at 12:16-18.) In the aftermath of the collision, she allegedly believed she had stopped before proceeding through the intersection. (*Id.* at 12:18-19.)

Performance Improvement Plan

In or about November of 2022, Ms. Sequeira received her performance appraisal for the period of November 18, 2021, through November 18, 2022, which was rated “Meets Expectations.” (Compl. at 12:20-22.) Despite prior appraisals reflecting improvement in her report writing, the appraisal allegedly criticized her for struggling with timely report submission. (*Id.* at 12:22-24.) On November 13, 2022, she was placed on a Performance Improvement Plan (“PIP”), citing spelling and grammatical errors, incomplete preliminary investigations, and delayed report submissions. (*Id.* at 12:24-26.) Ms. Sequeira alleges “on information and

belief” that nonprotected officers were not subject to the same treatment. (*Id.* at 12:26-27.)

Letter of Instruction and Removal from Collateral Intelligence Unit

On December 26, 2022, Ms. Sequeira was allegedly assigned to Beat 8. (Compl. at 13:3.) While on that assignment, she failed to respond to a text message from Mr. Castillo because she was using the restroom and was unable to hear him on a radio call. (*Id.* at 13:4-6.) Mr. Castillo had allegedly been tracking Ms. Sequeira’s location via GPS, which Ms. Sequeira alleges was in violation of RPD policy. (*Id.* at 13:6-7.) Mr. Castillo criticized Ms. Sequeira for using the restroom at RPD’s dispatch building and directed her to use a gas station instead; she alleges this was “in marked contrast to the treatment of other officers.” (*Id.* at 13:7-9.) On January 18, 2023, Ms. Sequeira was issued a Letter of Instruction based on accusations that she failed to follow a lawful order from Mr. Castillo and was disrespectful and unprofessional. (*Id.* at 13:1-2.) She was subsequently removed from her assignment on the Collateral Intelligence Unit without being informed of the disciplinary action or offered union representation. (*Id.* at 13:9-11.)

Domestic Violence Call and Letter of Reprimand

On August 6, 2023, Ms. Sequeira allegedly responded to a domestic violence call and made contact with the male suspect. (Compl. at 13:15-16.) While gathering the suspect’s information, she was allegedly instructed by a sergeant to contact the victim instead. (*Id.* at 13:16-18.) To that end, she placed the suspect in the rear of her patrol car and contacted the victim. (*Id.* at 13:18-19.) She later returned to her patrol vehicle and found that the suspect had been taken by other officers to RPD for booking. (*Id.* at 13:19-20.) A citizen subsequently found the suspect’s wallet and returned it to the department. (*Id.* at 13:20.) When the suspect later contacted RPD claiming money was missing from his wallet, Ms. Sequeira was allegedly the only officer investigated in relation to the incident. (*Id.* at 13:20-22.) On February 15, 2024, Ms. Sequeira received a Letter of Reprimand from Chief French, which alleged that Ms. Sequeira “improperly handled and cared for potential evidence or personal property belonging to another person, ultimately losing a wallet that contained personal identification and \$1,320 in

cash.” (*Id.* at 13:22-25.)

Administrative Leave and Accident Scene Incident

On or about April 16, 2024, Chief French allegedly learned of the existence of a citizen’s security camera that captured Ms. Sequeira’s June 17, 2022, motor vehicle collision. (Compl. at 13:26-27.) The video from the incident showed that Ms. Sequeira “failed to come to a complete stop before proceeding through the intersection.” (*Id.* at 13:27-28.) Allegedly, based on the new evidence, Ms. Sequeira was placed on administrative leave on April 18, 2024, pending the outcome of an investigation. (*Id.* at 13:28-14:2.) The notice of administrative leave Ms. Sequeira received did not disclose the basis for the investigation and it was not until April 23, 2024, that she learned that it related to the 2022 motor vehicle collision. (*Id.* at 14:2-6.)

Upon learning the nature of the investigation and administrative leave, Ms. Sequeira allegedly met fellow-police officer and plaintiff Alayna Woody at the accident scene at 34th Street and McBryde Avenue on April 23, 2024, so Ms. Sequeira could reconstruct the accident and refresh her recollection of it. (Compl. at 14:5-9; 17:1-2.) Both officers were off duty. (*Id.* at 17:3-4.) Ms. Sequeira’s personal vehicle was lawfully parked on the public street, and the two officers walked the four corners of the intersection. (*Id.* at 14:9-11; 17:3-4.)

Then, as Ms. Sequeira and Ms. Woody sat in Ms. Sequeira’s parked vehicle, a black unmarked Ford Explorer patrol vehicle allegedly approached and parked facing the wrong direction on the street, nose-to-nose approximately two feet from Ms. Sequeira’s vehicle, restricting her ability to move. (Compl. at 14:11-13; 17:4-6.) The Ford Explorer carried the Internal Affairs Investigator Mr. England and RPD’s Manager of the Office of Professional Accountability, Eddie Aubrey. (*Id.* at 14:11-13.)

Mr. England allegedly instructed Ms. Woody to exit the vehicle in a stern tone and ordered her to stand behind it – a position Ms. Woody recognized, based on her training and experience, as where officers place persons being detained during a traffic enforcement stop. (Compl. at 17:6-9.) Mr. England and Mr. Aubrey then

questioned Ms. Sequeira while she remained seated in the vehicle, with Mr. England acting as cover officer. (*Id.* at 17:9-11.)

Mr. England and Mr. Aubrey subsequently instructed Ms. Woody to leave the area, threatening to “call [her] in.” (Compl. at 17:11-12.) Ms. Woody, fearful of further adverse employment action, complied and drove away. (*Id.* at 17:12-14.) Ms. Sequeira alleges she, too, was threatened by Mr. England and Mr. Aubrey, although she does not elaborate on what threats were made against her specifically. (*Id.* at 14:15-16.) Plaintiffs both allege the encounter constituted an unlawful detention. (*Id.* at 14:13-15.)

Ms. Woody subsequently filed a complaint against Mr. England and Mr. Aubrey based on this incident, discussed at greater length *infra*, and Mr. England and Mr. Aubrey were removed from the investigation into Ms. Sequeira’s motor vehicle collision. (Compl. at 14:18-20.) RPD hired Karen Kramer from Kramer Workplace Investigations to take over the investigation into Ms. Sequeira’s motor vehicle collision. (*Id.* at 14:20-22.) Kramer Workplace Investigations is allegedly “a long-time public sector investigator, particularly in law enforcement investigations,” and thus, according to Plaintiffs’ Complaint, “hardly an independent and unbiased investigator.” (*Id.* at 14:20-22.)

In December of 2024, while still on administrative leave, Ms. Sequeira received a performance appraisal for the period of November 18, 2023, to November 18, 2024. (Compl. at 14:23-26.) Her overall rating was “Meets Expectations” although the appraisal was limited in nature because she was on administrative leave for most of the rating period. (*Id.* at 14:24-26.)

Termination

On February 6, 2025, Ms. Sequeira received a Notice of Intent to Terminate from Chief French. (Compl. at 14:27.) The notice stated that Ms. Sequeira “‘falsely claimed on multiple occasions – under oath and under penalty of perjury – that [she] stopped at the stop sign prior to hitting [the other] vehicle on June 17, 2022.’” (*Id.* at 14:28-15:1.) The notice also included the allegation that Ms. Sequeira engaged in “‘deceitful misconduct.’” (*Id.* at 15:2.)

A *Skelly* hearing was convened and Richmond Fire Chief Aaron Osorio, who served as *Skelly* officer, sustained the proposed discipline. (Compl. at 15:4-5.) Ms. Sequeira alleges that Chief Osorio's finding stemmed from a "clear conflict of interest," however she does not elaborate on the basis of the conflict. (*Id.* at 15:5-6.)

On July 3, 2025, Ms. Sequeira was terminated. (Compl. at 15:7.) The Notice of Final Discipline again stated that Ms. Sequeira had falsely claimed on multiple occasions, under oath and under penalty of perjury, that she stopped at the stop sign before the June 17, 2022 collision, and again characterized her conduct as "deceitful misconduct." (*Id.* at 15:8-15.) Ms. Sequeira alleges she genuinely believed she had stopped and the characterization of her conduct as deliberate dishonesty is without support. (*Id.* at 15:10-15.)

Ms. Sequeira alleges that the Notice of Final Discipline also included additional accusations she characterizes as false and misleading, including a reference to an unrelated minor traffic collision on August 6, 2021, and the December 26, 2022 incident with Mr. Castillo where RPD alleged she was "'disrespectful and unprofessional'" for what she describes as "protesting her mistreatment by defendant Castillo." (Compl. at 15:21-28.) She alleges that these additional accusations illustrate Defendants' disparate treatment of female officers in that male officers allegedly engaged in serious misconduct with little or no consequences during the same period. (*Id.* at 15:16-20.) Plaintiffs' Complaint does not identify any specific male officers or describe the nature of their alleged misconduct apart from describing the conduct as "serious civil rights violations." (*Ibid.*)

On August 11, 2025, the Commission on Peace Officer Standards and Training ("POST") notified Ms. Sequeira that it had closed its case against her for dishonesty without further action, citing a lack of sufficient evidence to substantiate the alleged conduct by clear and convincing evidence or a determination that the conduct did not warrant decertification or suspension. (Compl. At 16:2-9.)

C. Alayna Woody

Background and Performance History

Ms. Woody, a woman, was hired as a Police Officer Trainee (“PTO”) by RPD on May 13, 2019, and became a sworn peace officer promoted to the rank of Police Officer on November 18, 2019. (Compl. at 16:14-16.) She was released from the PTO program to solo beat patrol May 31, 2020. (*Id.* at 16:16-17.)

Ms. Woody received numerous commendations during her tenure with RPD. (Compl. at 16:18-25.) On March 5, 2021, she was praised for her patience and professionalism in handling a call involving a mentally unstable and combative person. (*Id.* at 16:18-20.) On April 18, 2021, she received a summary commendation for conducting 112 vehicle enforcement stops resulting in five firearm-related arrests. (*Id.* at 16:20-22.) She received additional commendations on December 9, 2022, October 19, 2023, and March 22, 2024. (*Id.* at 16:22-23.) In March 2024 she also received a Bureau Commendation for her role in the safe surrender of a homicide suspect and recovery of evidence. (*Id.* at 16:23-25.)

Alleged Pattern of Targeting by Castillo

Ms. Woody alleges that, like Ms. Terrell and Ms. Sequeira, she experienced problems with Mr. Castillo, who singled her out for unwarranted criticism and other adverse employment actions. (Compl. at 16:26-28.) The Complaint does not identify any specific incidents, dates, or conduct attributable to Mr. Castillo with respect to Ms. Woody.

Complaint About England and Aubrey Accident Scene Incident

On April 23, 2024, Ms. Woody accompanied Ms. Sequeira to the accident scene at 34th Street and McBryde Avenue where she alleges she was illegally detained by Mr. England and Mr. Aubrey. (see *ante*, “Administrative Leave and Accident Scene Incident.”) On or about April 25, 2024, Ms. Woody filed a complaint against Mr. England and Mr. Aubrey regarding the encounter. (Compl. at 17:14-15.) In her complaint, Ms. Woody wrote:

I no longer feel as safe and question my safety and the rights I have in my place of employment. I also have lost

faith and trust in the department's [Internal Affairs] process and ultimately the chief who they report to. ... I have serious concerns over how my future treatment in the department will be, retaliation for filing this complaint, for what transpired and for my own emotional, physical, and mental health. This was a shameful exercise of the department's power and needs to be addressed immediately.

(Compl. at 17:14-20.)

Shortly thereafter, Chief French met with Ms. Woody; the chief characterized Ms. Woody's allegations as serious and assured her she would be protected from retaliation. (Compl. at 17:21-22.) Chief French subsequently promoted Mr. England from sergeant to lieutenant. (*Id.* at 9:7; 17:23-24.) Ms. Woody alleges that, in contrast to the treatment of other officers (though she does not identify any other officers or a specific policy), Mr. England was not placed on desk duty during the investigation of her complaint. (*Id.* at 17:24-25.)

Chief French assigned investigation into Ms. Woody's complaint to Karen Kramer of Kramer Workplace Investigations – the same investigator concurrently investigating the accusations against Ms. Sequeira. (Compl. 14:20-22; 17:26-28.) Although video of Ms. Sequeira's accident at the same intersection was located from years earlier, Defendants represented that no video of the alleged unlawful detention existed. (*Id.* at 18:1-2.) Ms. Woody alleges "on information and belief" that Mr. England deliberately concealed the video to cover up his misconduct. (*Id.* at 18:2-3.) She alleges no factual basis for her information and belief.

On January 15, 2025, RPD issued a memorandum to Ms. Woody notifying her that Kramer did not sustain her complaint that Mr. England and Mr. Aubrey had unlawfully detained her. (Compl. at 18:4-5.) Ms. Woody alleges that Kramer's investigation was "incompetent and corrupt." (*Id.* at 18:19-20.)

Letters of Instruction

On December 30, 2023, and September 20, 2024, Ms. Woody received what she

alleges were “unwarranted” Letters of Instruction, a form of written warning, for her report preparation. (Compl. at 18:22-23.) She alleges “on information and belief” that nonprotected officers were not subject to the same treatment. (*Id.* at 18:21-24.) Notably, Ms. Woody’s performance appraisals for the period of November 2023 through November 2024 reflected that she consistently delivered exemplary performance and that her written reports were precise, well-structured, and submitted promptly. (*Id.* at 18:25-28.) The Complaint does not identify who issued the Letters of Instruction or attempt to explain the discrepancy between the written warnings and contemporaneous performance appraisal.

II. Procedural Background

Ms. Terrell filed a complaint with the California Civil Rights Department (“CRD”) on September 20, 2024, and sought and received an immediate right-to-sue letter. (Compl. at 4:1-4, Exhibit A.) Ms. Sequeira and Ms. Woody filed their own complaints with the CRD on September 10, 2025, and sought and received immediate right-to-sue letters. (Compl. at 4:5-12, Exhibit B, Exhibit C.)

This judicial complaint in this action was filed September 11, 2025. The individual defendants in this case – Bisa French, Enrik Melgoza, Miguel Castillo, and Joseph England – collectively filed the instant demurrer on January 9, 2026. The City of Richmond and RPD also filed a demurrer to challenge the claims against them in this action on November 24, 2025; that motion is heard concurrently with the instant motion.

III. Meet and Confer Efforts

Before a responding party files a demurrer, the parties shall meet and confer at least five days prior to the date the responsive pleading is due, in person, by telephone, or by videoconference. (Code Civ. Proc., § 430.41(a)(2).)

Here, the Individual Defendants were not served with the Complaint until November 25, 2025, when Plaintiff’s counsel Robert Schwartz served Defense counsel, Nicholas Grethen’s office with Notices of Acknowledgment and Receipt of the Complaint. (Declaration of Nicholas M. Grether in Support of Individual

Defendants’ Demurrer to Plaintiffs’ Complaint (“Grether Dec.”) ¶7.) Mr. Grether signed and returned those notices on December 10, 2025, making the due date for responsive pleadings January 9, 2026. (*Id.* ¶8.) Mr. Grether emailed Mr. Schwartz on December 22, 2025, requesting Mr. Schwartz’s availability to meet and confer prior to January 2, 2026, regarding the bases for the Individual Defendants’ demurrer. Receiving no response, Mr. Grether followed up with a subsequent email on December 30, 2025, seeking Mr. Schwartz’s availability to meet and confer, to which he received no reply until January 5, 2026. (Grether Dec. ¶11.) Mr. Schwartz in his January 5, 2026, reply said he would be available to meet and confer later the same day or on January 6, 2026. (Grether Dec., Exhibit 2.) When Mr. Grether called Mr. Schwartz on January 6, 2026, he received no answer. (*Id.* ¶12.)

Despite Mr. Grether’s good faith efforts, the parties were unable to meet and confer prior to the January 2, 2026 deadline as a result of Mr. Schwartz’s unavailability. Defense counsel is substantially in compliance with his statutory obligation, and accordingly, the Court proceeds with its ruling. (Code Civ. Proc., § 430.41(a)(4).)

IV. Legal Standard

“A demurrer tests the sufficiency of the complaint by raising questions of law.” (*Schmidt v. Foundation Health* (1995) 35 Cal.App.4th 1702, 1706.) The court “treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) A demurrer does not test the truth or accuracy of the facts alleged in the complaint; the court assumes the truth of all properly pleaded factual allegations. (*Los Altos Golf & Country Club v. County of Santa Clara* (2008) 165 Cal.App.4th 198, 203.)

A complaint “is sufficient if it alleges ultimate rather than evidentiary facts” (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550), but the plaintiff must set forth the essential facts of his or her case “with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent” of the plaintiff’s claim. (*Doheny Park Terrace Homeowners Assn., Inc. v.*

Truck Ins. Exchange (2005) 132 Cal.App.4th 1076, 1099.)

“Plaintiff may allege on information and belief any matters that are not within his personal knowledge, if he has information leading him to believe that the allegations are true.” (*Pridonoff v. Balokovich* (1951) 36 Cal.2d 788, 792.) “[A] pleading that [does] no more than assert boilerplate allegations [however]...would not be sufficient nor would allegations of information and belief that merely asserted the facts so alleged without alleging such information that ‘lead[s] [the plaintiff] to believe that the allegations are true.’” (*Doe, supra*, 42 Cal.4th at 551, fn. 5; see also *Gomes v. Countrywide Home Loans, Inc.* (2011) 192 Cal.App.4th 1149, 1158-59.)

The complaint must be “liberally construed, with a view to substantial justice between the parties.” (Code Civ. Proc. § 452.) “[I]f it appears that the plaintiff is entitled to any relief against the defendant, the complaint will be held good, even though the facts may not be clearly stated.” (*Community Cause v. Boatwright* (1981) 124 Cal.App.3d 888, 896.) Regardless of whether a Plaintiff has requested leave to amend, it is an abuse of discretion to sustain a demurrer to an initial complaint without leave to amend unless the complaint shows on its face that it is incapable of amendment. (*Cabral v. Soares* (2007) 157 Cal.App.4th 1234, 1240; *Eghtesad v. State Farm General Ins. Co.* (2020) 51 Cal.App.5th 406, 411.)

V. Analysis

A. Harassment

It is a violation of FEHA to engage in or permit harassment of an employee in the workplace. (Gov. Code § 12940(j)(1).) An employee of an entity subject to FEHA is personally liable for harassment. (Gov. Code § 12940(j)(3); *Page v. Superior Court* (1995) 31 Cal.App.4th 1206, 1211.)

The elements of harassment are (1) plaintiff is a member of a protected class; (2) plaintiff was subjected to unwelcome conduct or comments; (3) the harassment was because of plaintiff's membership in the protected class; and (4) the harassment altered the conditions of employment and created an abusive working environment. (*Thompson v. City of Monrovia* (2010) 186 Cal.App.4th 860,

876.) To state a claim for harassment, a plaintiff must show that the workplace is permeated with discriminatory intimidation, ridicule and insult that is sufficiently severe or pervasive to alter the conditions of the victim's employment and create an abusive working environment. (*Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 263.)

Discrimination and harassment are in separate categories under FEHA; “discrimination refers to bias in the exercise of official actions on behalf of the employer, and harassment refers to bias that is expressed or communicated through interpersonal relations in the workplace.” (*Roby v. McKesson Corp.* (2009) 47 Cal.4th 686, 707.) Harassment consists of conduct outside the scope of necessary job performance; commonly necessary personnel management actions do not come within the meaning of harassment. (*Ibid.*) Harassment is conduct unnecessary for management of the employer’s business or performance of the supervisory employee’s job and typically involves bias-motivated hostility, ridicule, or insult. (*Janken, supra*, 46 Cal.App.4th at 63.)

Ms. Terrell

1. Bisa French

Ms. Terrell alleges that Chief French approved discipline and adverse employment actions against her, told her that supervisors were “gunning” for her without taking remedial action, and acknowledged during an exit interview that Ms. Terrell had been targeted but stated that she, Chief French, was unable to protect her. (Compl. at 10:16-17; 11:13-15.) Chief French’s approval of discipline and adverse employment actions constitutes personnel management and cannot form the basis of a harassment claim. (*Janken, supra*, 46 Cal.App.4th at 64-65.) Her remaining conduct – telling Ms. Terrell that supervisors were targeting her and acknowledging the targeting at the exit interview – describes inaction and failure to intervene, not affirmative harassing conduct directed at Ms. Terrell. Furthermore, none of the aforementioned conduct is alleged to have been directed at Ms. Terrell because of her sex, race, or sexual orientation.

The harassment claim against Chief French as to Ms. Terrell therefore fails on both the *Janken* personnel management ground and the absence of a protected

status nexus.

2. Enrik Melgoza

All of the conduct alleged against Mr. Melgoza – the Beat 7 transfer, the FTO denial, the negative performance evaluation, the negative comment card, the SWAT reassignment, and the denial of Ms. Terrell’s transfer request – constitutes personnel management. (See *ante*, “Alleged Pattern of Targeting by Castillo and Melgoza.”) None of it falls outside the scope of supervisory management functions, and none of it is alleged to have been directed at Ms. Terrell because of her sex, race, or sexual orientation. On the contrary, Ms. Terrell explicitly contends that Mr. Melgoza’s conduct was part of a scheme to retaliate against Ms. Terrell for her complaint against Mr. Lonso. (Compl. at 7:20-21, 8:13-15, 8:22-27.)

The harassment claim against Mr. Melgoza as to Ms. Terrell therefore fails on the same grounds as that of Chief French.

3. Miguel Castillo

The conduct alleged against Mr. Castillo includes the child custody incident, the service call redirect, the rude phone call, and the body camera audit conducted in concert with Mr. Melgoza. (Compl. at 9:3-11, 10:12-15.) The service call redirect and body camera audit are personnel management functions. The child custody incident, while unusual, describes conduct directed at a third party – the mother who complained to the City Council – rather than harassing conduct directed at Ms. Terrell. The rude phone call is the only alleged conduct arguably outside the scope of supervisory management, but a single incident of this nature does not, as a matter of law, constitute conduct sufficiently severe or pervasive to alter the conditions of employment. (*Martin v. Trustees of California State University* (2023) 97 Cal.App.5th 149, 170.) Independently, none of the conduct attributed to Mr. Castillo is alleged to have been directed at Ms. Terrell because of her sex, race, or sexual orientation; her own allegations attribute his targeting to personal retaliation for the Lonso complaint. (Compl. at 7:20-21, 8:13-15, 8:22-27, 9:18-19.)

The harassment claim against Mr. Castillo as to Ms. Terrell therefore fails.

4. Joseph England

The Complaint does not allege any conduct by Mr. England directed at Ms. Terrell. The harassment claim against Mr. England as to Ms. Terrell therefore fails.

The demurrer to the fourth cause of action for harassment against all Individual Defendants as to Ms. Terrell is **SUSTAINED WITH LEAVE TO AMEND**.

Ms. Sequeira

1. Bisa French

Ms. Sequeira alleges that Chief French gave her a Letter of Reprimand, placed her on administrative leave, issued a Notice of Intent to Terminate, and ultimately terminated her following a sustained *Skelly* hearing. (Compl. at 13:15-28, 14:1-4, 14:27-15:3, 15:7.) All of this conduct constitutes personnel management and cannot form the basis of a harassment claim. (*Janken, supra*, 46 Cal.App.4th at 64-65.)

The harassment claim against Chief French as to Ms. Sequeira therefore fails.

2. Enrik Melgoza

The Complaint does not allege any conduct by Mr. Melgoza directed at Ms. Terrell. The harassment claim against Mr. Melgoza as to Ms. Sequeira therefore fails.

3. Miguel Castillo

The conduct alleged against Mr. Castillo as to Ms. Sequeira consists of tracking her location via GPS in alleged violation of RPD policy, criticizing her for using the restroom at RPD's dispatch building and directing her to use a gas station instead, and issuing a Letter of Instruction. (Compl. at 13:1-14.) The Letter of Instruction is personnel management. The GPS tracking and restroom criticism are more colorable as conduct outside the scope of supervisory management, but both fail on the protected status nexus; neither allegation connects Mr. Castillo's conduct to Ms. Sequeira's sex or other protected characteristic. Ms. Sequeira's allegation that this conduct was "in marked contrast to the treatment of other officers" is a passing reference that identifies no comparator and provides no factual basis

connecting the differential treatment to protected characteristics. (*Id.* at 13:7-9.)

The harassment claim against Mr. Castillio as to Ms. Sequeira therefore fails.

4. Joseph England

Ms. Sequeira alleges that Mr. England approached her at the accident scene on April 23, 2024, parked nose-to-nose with her vehicle, prevented her from leaving, questioned her, and then ordered her to leave while making unspecified threats. (Compl. at 14:11-17, see *ante* “Administrative Leave and Accident Scene Incident.”) Even assuming this single incident constitutes conduct outside the scope of supervisory management, it does not support a harassment claim for two independent reasons.

First, a single incident of this nature does not plausibly allege conduct sufficiently severe or pervasive so as to alter the conditions of Ms. Sequeira’s employment. (*Nazir, supra*, 178 Cal.App.4th at 263.)

Second, the incident arose in the context of an investigation into Ms. Sequeira’s motor vehicle accident, not because of her sex or other protected characteristic. Harassment must be based on the plaintiff’s membership in protected class to be actionable under FEHA. (*Thompson, supra*, 186 Cal.App.4th at 876.)

The harassment claim against Mr. England as to Ms. Sequeira therefore fails.

The demurrer to the fourth cause of action for harassment against all Individual Defendants as to Ms. Sequeira is **SUSTAINED WITH LEAVE TO AMEND**.

Ms. Woody

1. Bisa French

Ms. Woody alleges that Chief French assured her she would be protected from retaliation following her April 2024 complaint, then promoted Mr. England despite the pending allegations against him. (Compl. at 17:21-25.) The promotion of Mr. England is a personnel management decision that cannot form the basis of a harassment claim. (*Janken, supra*, 46 Cal.App.4th at 64-65.) Chief French’s assurance of protection from retaliation describes a communication in response to Ms. Woody’s complaint, and not affirmative harassing conduct directed at Ms.

Woody.

The harassment claim against Chief French as to Ms. Woody therefore fails.

2. Enrik Melgoza

The Complaint does not allege any conduct by Mr. Melgoza directed at Ms. Woody. The harassment claim against Mr. Melgoza as to Ms. Woody therefore fails.

3. Miguel Castillo

The Complaint's allegations against Mr. Castillo as to Ms. Woody consist of a single conclusory paragraph alleging that he singled her out for unwarranted criticism and other adverse employment actions, without identifying any specific incident, date, or conduct, merely alleging "hostility toward any women who dared to question his authority." (Compl. at 16:26-28.) Such a conclusory allegation cannot, as a matter of law, establish the severe or pervasive pattern required to state a harassment claim. (*Nazir, supra*, 178 Cal.App.4th at 263.)

The harassment claim against Mr. Castillo as to Ms. Woody therefore fails.

4. Joseph England

Ms. Woody alleges that Mr. England approached her at the accident scene on April 23, 2024, instructed her to exit Ms. Sequeira's vehicle in a stern tone, ordered her to stand behind the vehicle, and subsequently threatened to "call her in" before ordering her to leave. (See *ante* "Administrative Leave and Accident Scene.") As discussed with regard to Ms. Sequeira's claims, this single incident does not plausibly allege conduct sufficiently severe to alter the conditions of Ms. Woody's employment and arose in the context of an investigation into Ms. Sequeira's motor vehicle accident rather than because of Ms. Woody's sex or other protected characteristic. (*Thompson, supra*, 186 Cal.App.4th at 876; *Nazir, supra*, 178 Cal.App.4th at 263.)

The harassment claim against Mr. England as to Ms. Woody therefore fails.

The demurrer to the fourth cause of action for harassment against all Individual Defendants as to Ms. Woody is **SUSTAINED WITH LEAVE TO AMEND**.

B. Intentional Infliction of Emotional Distress ("IIED")

Government Claims Act

Under the Government Claims Act, "failure to timely present a claim for money or damages to a public entity bars a plaintiff from filing a lawsuit against that entity." (*State of California v. Superior Court* (2004) 32 Cal.4th 1234, 1239.; Gov. Code, §§ 911.2, 945.4.) "[A] plaintiff must allege facts demonstrating or excusing compliance with the claim presentation requirement. Otherwise, his complaint is subject to a general demurrer for failure to state facts sufficient to constitute a cause of action." (*State of California v. Superior Court, supra*, 32 Cal.4th at 1243.)

Here, the Complaint fails to allege that any plaintiff presented a claim to the City of Richmond prior to filing suit nor that they were excused from doing so.

Plaintiffs argue that the exemption for public employee wage and salary claims under Government Code section 905(c) relieves them of this obligation.

(OPPOSITION TO INDIVIDUAL DEFENDANTS DEMURRER TO PLAINTIFFS' COMPLAINT ("Indiv. Oppo.") at 15:20-28.) That exemption, by its plain terms, applies only to claims for fees, salaries, wages, mileage, or other expenses and allowances, and does not extend to a claim for emotional distress damages. (Gov. Code, § 905(c).)

Merits

A claim for IIED requires (1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff's suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant's outrageous conduct. (*Christensen v. Superior Court* (1991) 54 Cal.3d 868, 903.) For conduct to be outrageous it must be so extreme as to exceed all bounds of that usually tolerated in a civilized community. (*Ibid.*) IIED liability "does not extend to mere insults, indignities, threats, annoyances, petty oppressions, or other trivialities." (*Hughes v. Pair* (2009) 46 Cal.4th 1035, 1051.)

[I]t is "not... enough that the defendant has acted with an intent which is tortious or even criminal, or that he has intended to inflict emotional distress, or even that

his conduct has been characterized by ‘malice,’ or a degree of aggravation which would entitle the plaintiff to punitive damages for another tort.”

(*Cochran v. Cochran* (1998) 65 Cal.App.4th 488, 496, quoting Rest.2d Torts, § 46, com. d, p. 73.)

Even setting aside the threshold deficiencies, Plaintiffs’ IIED claim fails on the merits. The conduct alleged against the Individual Defendants consists of personnel management decisions, supervisory criticism, a single rude phone call, an accident scene encounter where Ms. Sequeira and Ms. Woody were allegedly unlawfully detained, and a failure to take remedial action; these do not rise to the level of extreme and outrageous conduct exceeding all bounds of decency tolerated in a civilized community that is required to state a claim for IIED.

Managing personnel is not outrageous conduct beyond the bounds of human decency, but rather conduct essential to the welfare and prosperity of society. A simple pleading of personnel management activity is insufficient to support a claim of intentional infliction of emotional distress, even if improper motivation is alleged.

(*Janken, supra*, 46 Cal.App.4th at 80.)

The demurrer to the eighth cause of action for IIED against all Individual Defendants as to all Plaintiffs is **SUSTAINED WITH LEAVE TO AMEND**.

VI. Conclusion

For the foregoing reasons, the Individual Defendants’ demurrer to the fourth cause of action for harassment and to the eighth cause of action for intentional infliction of emotional distress is **SUSTAINED IN ITS ENTIRETY WITH LEAVE TO AMEND** as to all Plaintiffs.

Plaintiff has 15 days from service of notice of entry of this order to file any amended pleading.